

(48)

Tentative Ruling

Re: ***Bledsoe v. True North Detox, LLC***
Superior Court Case No. 24CECG04930

Hearing Date: June 4, 2026 (Dept. 503)

Motion: By Defendant True North Detox, LLC for Protective Order

Tentative Ruling:

To take the motion off calendar due to the moving party's failure to comply with Fresno County Local Rules, rule 2.1.17.

Explanation:

Before a motion made under Code of Civil Procedure sections 2017.010 through 2036.050 may be heard, the moving party must request an informal Pretrial Discovery Conference and either the request must have been denied and permission to file the motion was granted, or, a conference was held and permission to file was granted. (Fresno County Local Rules, rule 2.1.17.)

This motion is brought pursuant to Code of Civil Procedure section 2025.240. Accordingly, Fresno County Local Rules, rule 2.1.17 applies. Defendant True North Detox, LLC has not filed any request for pretrial discovery conference in connection with this motion and obtained prior leave to file the instant motion. As such, the matter is ordered off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/3/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Smith v. Abakah et al.**
Superior Court Case No. 24CECG01640

Hearing Date: June 4, 2026 (Dept. 503)

Motion: By Defendant Joseph Abakah to Compel Attendance of
Fraisure Smith for Deposition

Tentative Ruling:

To grant the motion and compel Fraisure Smith to appear for deposition. (Code Civ. Proc., § 2025.450, subd. (a).) The parties are directed to meet and confer on dates for the deposition, which shall occur within three weeks from service of the order by the clerk.

To impose monetary sanctions in favor of Joseph Abakah and against Fraisure Smith. (Code Civ. Proc., § 2025.450, subd. (g)(1).) Plaintiff is ordered to pay \$1966 in sanctions to Schroeder Schaff & Low, Inc., within 30 days of the clerk's service of the minute order.

Explanation:

Defendant Joseph Abakah ("Defendant") moves to compel plaintiff Fraisure Smith ("Plaintiff") to appear for a deposition. Plaintiff has not filed an opposition to this motion.

Proper service of a notice of deposition compels any deponent who is a party to the action to attend, to testify, and to produce documents if requested. (Code Civ. Proc., § 2025.280, subd. (a).) Where a party deponent fails to appear at a properly noticed deposition, and no timely, valid objection under section 2025.410 has been served, the party giving the notice may move for an order compelling the deponent's attendance and testimony. (*Id.*, § 2025.450, subd. (a).)

On April 7, 2026, Defendant served Plaintiff with the *Notice of Taking Videotaped Deposition of Plaintiff, Fraisure Earl Smith*. (Shroeder Decl., ¶ 2.) The deposition of Plaintiff was scheduled for April 28, 2026. (*Ibid.*) On April 17, 2026, Plaintiff served a document responding to Defendant's discovery requests. (*Id.*, ¶ 3, Exh. B.) Plaintiff did not appear for the April 28, 2026 deposition. (*Id.*, ¶ 7.) On May 4, 2026, Defendant called Plaintiff for the reason to Plaintiff's nonappearance. (*Id.*, ¶ 8.) Plaintiff's response was Plaintiff's objection to the deposition notice and that Plaintiff would not comply. (*Ibid.*)

Plaintiff has not filed an opposition to Defendant's motion. Defendant has met the requirements of Code of Civil Procedure section 2025.450. Accordingly, the motion to compel the deposition of Plaintiff is granted. Plaintiff is directed to appear for deposition.

Defendant has additionally requested sanctions against Plaintiff pursuant to Code of Civil Procedure section 2025.450, subdivision (g)(1). Code of Civil Procedure section

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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